

**USMA Regulation 150-2**

# **Civilian Faculty Career Model**

**Department of the Army  
United States Military Academy  
West Point, NY 10996-5000  
20 FEB 2025**

**UNCLASSIFIED**

# ***SUMMARY of CHANGE***

USMA REG 150-2  
Civilian Faculty Career Model

This revision, dated 20 FEB 2025

- Edited Section 2–5 to improve parallelism and consistency.
- Removed definitions of Term Renewing Appointment, Term Non-Renewing Appointment, and Tenure from Chapter 3. Added new definitions of Non-Tenure Track (Temporary), Non-Tenure Track (Term), Tenure Track (Term), and Tenured (Permanent).
- Combined the categorization of civilian faculty members according to Excepted Service Appointment and Academic Tenure in Chapter 5.
- Removed the requirement in Section 5–1 to create a new faculty appointment letter at the time of reappointment when the categorization of the appointment has not changed.
- Consolidated discussion of reappointment in Chapter 6.
- Moved language concerning reappointment expectations of Non-Tenure Track appointments to the faculty appointment letter. Two standard statements of reappointment expectations are provided in Section 6–2. The Dean is the approval authority for any other statement of reappointment expectations for Non-Tenure Track faculty appointments.
- Grandfathered reappointment expectations for faculty members hired under previous versions of USMA Reg 150-2.
- Assigned approval authority to the Dean for conversion of full-time Title 10 faculty members to part-time status in Section 7–4.
- Restored longevity step increases for faculty members who have reached the federal pay cap in 7–5.a(2). These step increases do not increase the salary received by the affected faculty members.
- Reduced the minimum service time for the first longevity step increase from two years to eighteen months in Section 7–5.
- Assigned the approval authority for Title 10 leave without pay for other than routine reasons to the Dean in Section 7–6.
- Removed tenure-like hearing procedures for senior Non-Tenure Track Title 10 faculty members facing non-reappointment or termination for cause.
- Removed references to GSA's as we currently do not employ GSA's as faculty members.
- Updated faculty appointment letter wording in accordance with other changes.

## Civilian Faculty Career Model

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By Order of the United States  
Military Academy  
Superintendent:

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**History:** This publication  
supersedes and replaces  
USMA Reg 150-2 dated 01  
May 2023.

**Summary:** This Regulation  
implements 10 U.S.C. §7438  
and related authorities  
delegated to the USMA  
Superintendent in AR150-1 to  
define the roles, pay rules,  
work schedules, and career

model of the civilian  
component of the USMA  
faculty.

**Applicability:** USMA  
Regulation 150-2 applies to all  
USMA staff and directorates.

**Proponent and exception  
authority:** The proponent of  
this regulation is the Dean of  
the Academic Board, USMA.  
The proponent has the  
authority to approve  
exceptions or waivers to this  
regulation that are consistent  
with controlling law and  
regulations. Activities may  
request a waiver to this  
regulation by providing  
justification that includes a full  
analysis of the expected  
benefits and risk. All waiver  
requests will be endorsed by

the commander or senior  
leader of the requesting  
activity and forwarded through  
its higher headquarters to the  
proponent. The request must  
include formal review by the  
activity's senior legal officer  
and endorsement by the  
authorizing official.

**Suggested improvements:**  
Users should send comments  
and suggestions to the  
Director, Dean's Action Group,  
Using the USMA Reg 150-2  
[Issue Tracker](#).

**Distribution:** This publication  
is available in [electronic media](#)  
only and is intended for all  
USMA personnel.

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Expiration date of this Regulation: until superseded or rescinded.

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## Chapter 1 Purpose

The purpose of this regulation is to implement 10 USC §7438 and related authorities that AR 150-1 delegates to the USMA Superintendent in order to define primary components of the civilian faculty career model such as roles, benefits, work schedules, and general administration.

## Chapter 2 Overview

**2–1.** Civilian faculty members have been an integral part of USMA's faculty blend of excellence since the early 1990s. The Academic Program is currently led by a combination of senior military officers and senior civilian educators who provide strong connections to the higher education community as well as long-term stability and focus that is vital for an integrated and interdisciplinary academic program to flourish.

**2–2.** When the Department of Defense directed the expansion of the civilian faculty at USMA, it directed the following:

*An integrated faculty is required—one in which military and civilian members play synergistic roles. No less important, all faculty must be devoted to core institutional values of integrity, excellence, selfless service, and a commitment to the development of the whole person. Even so, distinctive roles of military and civilian faculty can be identified. Military faculty not only must be competent in their disciplines, but also must preserve and exemplify officership. The civilian faculty not only must be competent in their disciplines, but also must be adept at educational innovation, and be abreast of educational advances. Furthermore, the civilian faculties will be expected to participate in the full spectrum of academy programs, to include providing leadership for curricular and extracurricular activities of the students, and participating in academic governance....The faculties can act in unity, but not identically—a blend of excellence.*

**2–3.** Civilian faculty members are instrumental in all facets of USMA's mission to educate and develop leaders of character. Civilian faculty members also provide specialized knowledge of their disciplines and bring perspectives, ideas, and backgrounds that enrich the curriculum and expand instructional methodology. Additionally, they provide vital connections to civilian educational institutions and disciplinary communities of practice. Civilian faculty members also play crucial roles in Military Academy governance, as linkages between departments, and as public ambassadors of the Military Academy in scholarly forums. Senior civilian faculty members add disciplinary depth, institutional knowledge, and experience with educational innovation.

**2–4.** Title 10 USC §7438 authorizes the employment of civilian faculty members at USMA and provides exceptions to the normal Civil Service employment rules for hiring, pay, and work schedules. USMA implements the authorities of 10 USC §7438, as delegated in AR 150-1, through appointments of civilian faculty members in the Excepted Service (5 USC §2103). The Excepted Service is part of the Civil Service, and its members are subject to the same employment rules established under Title 5 of the U.S. Code as other Civil Service members unless specifically excepted. Civilian faculty members who are employed by USMA under 10 USC §7438 authority are locally known as "Title 10 faculty members," and the exceptions to the Civil Service rules that apply to them are listed in Appendix A. The Title 10 designation does not apply to civilian faculty members such as Fellows or Visiting Professors who are paid by an outside agency and are not USMA employees. Nor does it apply to any Competitive Service civilian employee of USMA. The Civilian Human Resources Agency (CHRA) administers Title 10 civilian faculty appointments to the Excepted Service.

**2–5.** USMA employs civilian faculty members primarily within the Academic Dean's directorate. However, civilian faculty members may also serve on the Superintendent's staff, on the

Commandant's staff, in the Modern War Institute, in the Simon Center for the Professional Military Ethic, in the Department of Physical Education, and in the Department of Military Instruction. Civilian faculty members teach, conduct scholarly research, develop cadets, develop other faculty members, and serve the Academy in various leadership and governance capacities such as Vice Deans, Associate Deans, Assistant Deans, in Centers of Excellence, as part of departmental leadership, on committees, and in staff positions such as those mentioned above.

### **Chapter 3**

#### **General Terms of Reference**

ATAAPS—Automated Time, Attendance and Production System

CFR—Code of Federal Regulations

CHRA—Civilian Human Resources Agency (formally the Civilian Personnel Advisory Center or CPAC)

Department Head—the Head of a Department of Instruction or, for matters of administration and supervision, an equivalent leader of an organization that employs civilian faculty members at USMA.

Department of Instruction—for the purposes of this regulation, all academic departments, the Department of Physical Education, the Simon Center for the Professional Military Ethic, the Department of Military Instruction, and any other USMA organization so designated by the Dean of the Academic Board.

Excepted Service—a component of the Civil Service whose members are excepted from particular Civil Service rules. (See 5 USC §2103.)

Faculty Member—a member of the USMA faculty as defined in USMA Reg 150-3.

IPA—Intergovernmental Personnel Act

TDA—Table of Distributions and Allowances

Non-Tenure Track (Temporary)—A Temporary appointment in the Excepted Service under the authority of 10 USC §7438 that is designated as Non-Tenure Track (Temporary) on the faculty appointment letter.

Non-Tenure Track (Term)—A Term appointment in the Excepted Service under the authority of 10 USC §7438 that is designated as Non-Tenure Track (Term) on the faculty appointment letter.

Tenure Track (Term)—A Term appointment in the Excepted Service under the authority of 10 USC §7438 that is designated as Tenure Track (Term) on the faculty appointment letter.

Tenured (Permanent)—A Permanent appointment in the Excepted Service in the academic rank of Associate Professor or Professor of Discipline under the authority of 10 USC §7438 that is designated as Tenured (Permanent) on the faculty appointment letter.

Trial Period—a period following initial appointment into the Excepted Service during which an employee can be terminated at will with limited right of appeal.

USC—United States Code

USMA—United States Military Academy

USMA Board of Directors—Superintendent, Dean, Commandant, Director of Intercollegiate Athletics, USMA Command Sergeant Major, the USMA Chief of Staff, and others so designated by the Superintendent.

**Sabbatical**—As defined in USMA Reg 150-5, a limited period of time in paid status during which the primary duty requirement is professional broadening. Sabbatical work may be carried out at or away from USMA.

**Title 10 Faculty Member**—a faculty member who is appointed to the Excepted Service under 10 USC §7438. Only credentialed USMA faculty members may be appointed to the Excepted Service under this authority.

## Chapter 4

### Legal and Regulatory Context

As a federal entity, USMA is subject to the annual appropriations process. All commitments expressed in this regulation are contingent on the continued availability of appropriated funds. This regulation implements USMA's discretionary and delegated authorities under federal law and regulation with respect to the employment of civilian faculty members. It does not authorize USMA to take any action with respect to the employment of civilian faculty members that is prohibited by federal law or regulation unless exceptions have been granted by a competent authority. Likewise, it does not prohibit USMA from taking any action that it is otherwise legally obligated to take in the administration of the civilian component of the faculty.

## Chapter 5

### Categories of Civilian Faculty Members and Other Civilians Directly Involved in the Delivery of the Curriculum

This chapter describes different categories of labor for all civilians who contribute directly to the curricular programs. These civilians are categorized by faculty membership, funding source, eligibility for academic promotion, tenure status, Excepted Service appointment, primary role, academic rank, employment classification, sabbatical eligibility, and education level. Civilian faculty members are eligible to receive security clearances, and some appointments require the ability to obtain and hold a clearance. Table 5-1 is used to categorize any civilian who works directly with the content of USMA's curricular program. At the time of appointment or reappointment when there is a change in categorization, all employees appointed under 10 USC §7438 and other civilians directly involved with cadet education will be provided a letter (Appendix C) that categorizes the terms of the appointment according to the factors listed in this table.

**Table 5-1: This table is used to categorize any civilian who works directly with the content of USMA's curricular program by selecting one item from each column. Note that not all combinations are permitted. For example, only tenured faculty members are eligible for sabbatical. Additional information about each column is provided below in the paragraphs corresponding to the column numbers.**

| 5-1. Faculty Member | 5-2. Funding Source | 5-3. Academic Promotion | 5-4. Tenure Status (Excepted Service Appointment) |
|---------------------|---------------------|-------------------------|---------------------------------------------------|
| Yes                 | Appropriated        | Eligible                | Non-Tenure-Track (Temporary)                      |
| No                  | Reimbursable        | Not Eligible            | Non-Tenure-Track (Term)                           |
|                     | Gift                |                         | Tenure Track (Term)                               |
|                     | IPA                 |                         | Tenured (Permanent)                               |
|                     | Grant               |                         | Not Applicable                                    |
|                     | External            |                         |                                                   |
|                     |                     |                         |                                                   |

| 5-5. Primary Faculty Role | 5-6. Academic Rank                    | 5-7. Employment Classification | 5-8. Sabbatical Eligibility |
|---------------------------|---------------------------------------|--------------------------------|-----------------------------|
| Regular                   | None                                  | USMA TDA Position              | Eligible                    |
| Teaching                  | Lecturer                              | Overhire                       | Not Eligible                |
| Research                  | Senior Lecturer                       | Visiting Professor             |                             |
| Administrative            | Instructor                            | Endowed /Distinguished Chair   |                             |
| Laboratory                | Senior Instructor                     | Fellow                         |                             |
|                           | Assistant Professor                   | Post Doc                       |                             |
|                           | Associate Professor                   | Part Time T10                  |                             |
|                           | Professor of Discipline               | Reemployed Annuitant           |                             |
|                           | Emeritus/ Emerita                     | IPA (detail)                   |                             |
|                           | Instructor of Military Science        | Contractor                     |                             |
|                           | Senior Instructor of Military Science |                                |                             |

#### 5-1. Faculty Membership and Appointment to the Faculty

Faculty membership is defined in USMA Reg 150-3 Procedures for Awarding Academic Titles and Tenure. It is possible for a civilian to have a direct role in teaching activities without being a member of the faculty. In advance of such involvement, the Head of the Department in which the teaching takes place must inform the civilian in writing that he or she is not a member of the faculty.

#### 5-2. Funding Source

*a. USMA Appropriated Funds.* Most Title 10 civilian faculty members are funded by USMA appropriated funds, which are programmed and managed by the USMA G8 (budgeting) office.

*b. Reimbursable Funds.* Title 10 civilian faculty members can be funded by reimbursable appropriated funds from governmental funding sources outside of USMA. While the hiring action may be initiated before funds for these positions are received, funds must be in place before the hiring action is finalized. Because of the uncertain nature of continued funding, it is not unusual for reappointments in reimbursable-funded positions to be for terms of less than one year. Reappointment in reimbursable-funded positions is always subject to the availability of new reimbursable funds, and faculty members in these appointments should be prepared for the possibility that they will not be reappointed with limited notice. Appointments to positions funded with reimbursable funds shall not be tenured or tenure-track.

*c. Gift Funds.* Title 10 civilian faculty members can also be funded through donor gift funds. While the hiring action may be initiated before gift funds for these positions are received, funds must be in place before the hiring action is finalized. Reappointment in gift-funded positions is always subject to the availability of donor funds, and faculty members in these appointments should be prepared for the possibility that they will not be reappointed with limited notice due to a change in the donor environment. Appointments to positions funded with gift funds shall not be tenured or tenure-track.

*d. Intergovernmental Personnel Act (IPA).* USMA can enter into an IPA agreement with another institution of higher education or other eligible organization to detail a faculty member from that institution to USMA for a specified period of time. As they are not USMA employees, IPA faculty members are not part of the Title 10 faculty and are not eligible for tenure. These civilian faculty members will contribute to the community of practice for which they were hired and participate in Academy functions alongside other civilian faculty members in accordance with the terms of the IPA contract.

*e. Grant Funds.* Title 10 civilian faculty members may be paid in part or fully from funds derived from grants to USMA provided that the faculty members' duties include teaching.



*f. Other External Funds.* Funds covering salaries of civilian faculty members that are not enumerated above will be classified as 'other.' The particular funding source will be indicated on the faculty appointment letter.

### **5-3. Eligibility for Academic Promotion**

All civilians who are directly involved in the delivery of the curriculum will be informed in writing whether or not they are eligible for academic promotion.

### **5-4. Tenure Status (Excepted Service Appointment)**

a. All Title 10 faculty members have Temporary, Term, or Permanent appointments in the Excepted Service. All newly hired Title 10 faculty members, regardless of Excepted Service appointment status, serve in an initial trial period.

(1) Temporary Appointments. Faculty members with temporary appointments in the Excepted Service are hired for a designated period of time (limited to one (1) year) and have limited benefits. Temporary appointments have statutorily limited opportunities for extension or renewal.

(2) Term Appointments. Faculty members holding Term appointments in the Excepted Service are hired for a designated period of time. Initial Term appointments are for a minimum of twelve (12) months, and one (1) day. There is no statutory limit on the number of times Term appointments can be renewed.

(3) Permanent Appointments. Permanent appointments are not time limited.

b. Academic tenure status is only applicable to Title 10 civilian faculty members.

(1) Non-Tenure Track faculty members have either Non-Tenure Track (Temporary) or Non-Tenure Track (Term) faculty appointments.

(2) Tenure Track faculty members have Tenure Track (Term) faculty appointments.

(3) Tenured faculty members have Tenured (Permanent) faculty appointments. Only faculty members in the academic rank of Associate Professor or Professor of Discipline are eligible for Tenured (Permanent) status.

(4) Tenure Track (Term) and Tenured (Permanent) faculty appointments are only available for Excepted Service positions that are on the USMA TDA and that are paid with USMA appropriated funds.

### **5-5. Primary Faculty Role**

USMA classifies civilian faculty members according to the weighting of their responsibilities across the domains of Teaching, Scholarship, Faculty Development, Cadet Development and Service. All faculty members have Teaching as a part of their responsibilities, but not all faculty members contribute fully across all five domains. The primary role designation reflects long-term expectations and does not reflect year to year variation in contributions across domains. Any change in the primary role designation away from a Regular Faculty role should occur by mutual agreement between a faculty member and his or her supervisory chain.

#### *a. Regular Faculty.*

(1) Most civilian faculty members are appointed in this role. Regular faculty members epitomize the USMA faculty model and are expected to contribute across the five domains of Teaching, Scholarship, Faculty Development, Cadet Development and Service. USMA limits the percentage of regular civilian faculty members teaching cadets to no less than 66% as measured by cadet enrollment in sections taught by civilians (i.e., the combined enrollment of all sections of 3.0 credit hours or higher and taught by regular civilian faculty members is not less than 66% of the combined enrollment of all sections of 3.0 credit hours or higher and taught by civilians). This ensures, on average, that two out of three civilian faculty members that a cadet receives instruction from are regular faculty members. Further, USMA limits the percentage of regular faculty members, military and civilian combined, to no less than 80% by the same measure. This ensures, on average, that four out of five faculty members (military and civilian) that a cadet receives instruction from are regular faculty members. The Vice Dean for Resources will monitor these ratios and will propose actions to enforce them if necessary.

(2) For purposes of faculty allocation, a full teaching load for regular faculty members is four sections of a 3.0 credit course with approximately eighteen students in a section each semester. However, actual teaching loads are determined by the Department Head based on additional duties, courses taught with credit hours that exceed 3.0, or other requirements, and teaching loads tend to be lower for more senior faculty members as they assume increased responsibilities outside of the classroom. Department Heads may also assign additional teaching requirements above the full teaching load such as senior colloquia,

capstone project supervision, or thesis oversight. Provided that regular faculty members are afforded adequate time throughout the year to meet Scholarship expectations, Department Heads may also assign summer courses and other support requirements for cadet or faculty development that are above and beyond the normal academic year requirements.

*b. Teaching Faculty.* A limited number of civilian faculty members are hired primarily for teaching. Civilian faculty members appointed to this role have an outsized Teaching requirement in support of curricular programs. Consequently, these faculty members may not have opportunities to pursue excellence in the other faculty domains.

*c. Research Faculty.* Civilian faculty members appointed in this role have an outsized Scholarship requirement in support of research or cadet capstones. Consequently, these faculty members often have reduced teaching loads relative to Regular Faculty members. Actual teaching loads are determined by the Department Head, Center Director, or equivalent organization leader based on additional duties or other organizational requirements. Research Faculty members may not have opportunities to pursue excellence in all five faculty domains.

*d. Administrative Faculty.* Civilian faculty members appointed in this role have clearly defined administrative and governance requirements as members of the Dean's, Commandant's, or Superintendent's staff that demand a significant portion of their time. Faculty members employed with an outsized focus on administrative requirements will teach as duties permit, and as approved by the General Officer equivalent supervisor that oversees their positions. Tenure-Track or Tenured faculty members who are assigned to an administrative position retain their Tenure-Track or Tenured status. A Tenure-Track faculty member who is reassigned to an administrative position may be allowed additional tenure-seeking time. Administrative Faculty members may not have opportunities to pursue excellence in all five faculty domains.

*e. Laboratory Faculty.* Laboratory faculty are appointed under 10 USC §7438 to provide technical support to cadet educational activities. These faculty members provide oversight on curricular aspects of laboratory instruction and provide a bridging capacity between laboratory technicians and other faculty. These faculty members may also provide supervision for laboratory staff. Laboratory Faculty members may not have opportunities to pursue excellence in all five faculty domains.

## **5-6. Academic Rank**

All faculty members must be credentialed at an appropriate academic rank according to the requirements and procedures described in USMA Reg 150-3.

## **5-7. Employment Classification**

*a. USMA Table of Distribution and Allowances.* Most civilian billets are classified as USMA Table of Distribution and Allowances (TDA) positions. These are required and authorized by Headquarters Department of the Army.

*b. Overhire.* The USMA Chief of Staff may authorize overhire positions to augment shortages, facilitate changing requirements, or support mission requirements. Overhire positions are not authorized on the USMA TDA.

*c. Visiting Professor.* Visiting Professors are credentialed faculty members of other institutions of higher education or experts from industry or government who serve at USMA for a mutually agreed upon period. Visiting Professors teach an agreed upon number of sections and advise Department and/or Academy leaders on best practices from their home institution. Visiting Professors are also encouraged to contribute to faculty development and to scholarship activities. Visiting Professors who are not otherwise credentialed must be credentialed in accordance with USMA Reg 150-3. Specific administrative processes regarding Visiting Professors such as awards and onboarding are outlined in DPOM 3-13.

*d. Endowed/Distinguished Chair.* Since the early 1990s, the West Point Association of Graduates (WPAOG) and USMA have sought to enhance the Academic Program through endowed chairs. These named professorships enable USMA to enrich its faculty with exceptionally skilled professors, known for professional achievement, extraordinary teaching, research, and faculty mentoring, or other exceptional professionals. Professors holding endowed chairs may come from the USMA faculty or from sources outside of USMA. Endowed Chair faculty members contribute to teaching in a variety of ways. Their teaching loads will be determined by the relevant department's or center's leader and the terms of the endowment.

*e. Fellow.* Civilian faculty members appointed into teaching or research fellowships teach the number of sections specified by the fellowship requirements as stipulated by the funding source.

*f. Post Doc.* Faculty appointments that are geared towards recent recipients of terminal degrees and that are structured as closed-ended developmental experiences may be classified as Post Doc positions.

*g. Part-Time Title 10.* Part time faculty members who hold temporary or term appointments. Faculty members hired in this role will teach the number of sections agreed upon at the time of employment. These faculty may also conduct research, but they must contribute to the curricular programs.

*h. Reemployed Annuitant.* Civilian faculty members who have retired from government service may be employed as a reemployed annuitant to support teaching, administration, or research requirements as determined at the time of employment.

*i. Intergovernmental Personnel Act (IPA) Detail.* IPA faculty members are employees of other academic institutions (non-federal), state/local government and/or government sponsored laboratories. IPA administrative procedures and specific responsibilities are outlined in DPOM 3-13.

*j. Contractor.* Contractors are employees of private businesses providing services to USMA under contract.

### **5–8. Sabbatical Eligibility**

Communicates whether the individual is eligible for a sabbatical during the current appointment. See USMA Reg 150-5, Broadening Programs.

### **5–9. Education Level**

Highest accredited academic degree attained and the associated discipline. Minimum degree requirements for academic credentialing are specified in USMA Reg 150-3.

## **Chapter 6**

### **Tenure Status, Academic Rank, Terms of Employment, Appointment Renewal, and Non-Competitive Conversion of Title 10 Faculty Members**

#### **6–1. Non-Tenure Track (Temporary) Title 10 Faculty Appointments**

a. Academic Rank. Faculty members with Non-Tenure Track (Temporary) faculty appointments may hold any academic rank available under USMA Reg 150-3.

b. Renewal. Temporary appointments are no more than one (1) year in duration, and may be extended, but are limited to a maximum of twenty-four (24) months, in accordance with 5 CFR §213.104(b)(1).

c. Non-Competitive Conversion. Faculty members holding temporary appointments in the Excepted Service are not eligible for non-competitive conversion to Term or Permanent appointments.

#### **6–2. Non-Tenure Track (Term) Title 10 Faculty Appointments**

a. Academic Rank. Faculty members with Non-Tenure Track (Term) faculty appointments may hold any academic rank available under USMA Reg 150-3.

b. Renewal Eligibility. Each Term appointment can be extended or renewed for a new term of up to six years, though appointment terms for Instructors, Senior Instructors, and Assistant Professors are normally limited to three years. There is no statutory limit to the number of times a Term appointment may be renewed. The end date of a Term appointment is designated by the Not to Exceed (NTE) date on the faculty member's form SF-50 Notification of Personnel Action. If no administrative action is taken to renew the appointment prior to the NTE date, the appointment expires automatically. Renewal requires the submission of form SF-52 Request for Personnel Action.

c. Renewal Expectations.

(1) Decision Authority. Renewal decisions for Non-Tenure Track (Term) faculty members are made by the Department Head or equivalent unit leader.

(2) Faculty Appointment Letter. Although USMA is not obligated to renew Term appointments, articulation of intent in the faculty appointment letter clarifies expectations for both USMA and faculty members. Faculty appointment letters for Non-Tenure Track (Term) faculty members will express the intentions and conditions for renewal as they exist at the beginning of the appointment. The following options for stating renewal intentions in the faculty appointment letters for newly hired Non-Tenure Track

(Term) faculty members are authorized. Any other statement of renewal intentions must be approved by the Dean prior to the faculty appointment.

Option 1: "At this time, there is no intent to renew your appointment. Unless you are notified otherwise by your Department Head (or designate an equivalent unit leader), you should assume your appointment will expire on the NTE date."

Option 2: "There is an opportunity for your continued employment on the USMA faculty in a series of Non-Tenure Track (Term) appointments, subject to job performance and the needs of the Academy. Except in a case of documented misconduct or poor performance, or a lapse in funding for your position, if your appointment will not be renewed, your Department Head (or designate an equivalent unit leader) will normally notify you in writing before the first class day of the last academic year of your current appointment. If this notice is given late or not given, you may request a two-semester extension to the NTE date of your appointment. A request for extension that is received prior to the NTE date and within 30 calendar days of a late notice of non-reappointment will normally be granted. Denial of a timely request for extension must be approved by the Dean (or Commandant for faculty in USCC)."

(3) Nothing in this section prohibits the correction of an administrative error in the renewal process that is otherwise allowed under law and regulation.

d. Non-Competitive Conversion.

(1) Except at the time of promotion of a Non-Tenure Track (Term) Instructor or Senior Instructor to the academic rank of Assistant Professor, a faculty member designated as Non-Tenure Track (Term) is not eligible for non-competitive conversion to a Tenure Track (Term) or Tenured (Permanent) appointment.

(2) Noncompetitive conversion to Tenure Track (Term) status on academic promotion of a Non-Tenure Track (Term) Instructor or Senior Instructor to the rank of Assistant Professor requires nomination by the PUSMA Department Head responsible for the academic promotion nomination and approval by the Dean.

### **6-3. Tenure Track (Term) Title 10 Faculty Appointments**

a. Academic Rank. Faculty members with Tenure Track (Term) appointments may hold the academic ranks of Assistant Professor, Associate Professor or Professor of Discipline.

b. Academic Tenure.

(1) Tenure Track (Term) Assistant Professors are granted academic tenure on promotion to the academic rank of Associate Professor in accordance with the standards, procedures, and timeline prescribed in USMA Reg 150-3.

(2) Tenure Track Associate Professors and Professors of Discipline are eligible for tenure after two years of service on the USMA faculty in a Tenure Track appointment without further review by the Credentials and Promotions Committee. Conversion to Tenured (Permanent) status requires nomination by the PUSMA Department Head responsible for the faculty appointment and approval by the Dean.

c. Renewal Eligibility. Tenure Track Assistant Professors are initially appointed to terms of three years. Tenure Track Associate Professors and Professors of Discipline are initially appointed to terms of two years. The end date of the appointment is designated by the Not to Exceed (NTE) date on the faculty member's form SF-50 Notification of Personnel Action. If no administrative action is taken to renew the appointment prior to the NTE date, the appointment expires automatically. Renewal requires the submission of form SF-52 Request for Personnel Action. While there is no statutory limit to the number of times a Term appointment may be renewed, continued employment in a Tenure Track (Term) appointment is limited by the timelines prescribed in USMA Reg 150-3 and this regulation.

d. Renewal Expectations.

(1) Tenure Track (Term) Assistant Professors.

(a) Barring demonstrated substantial change of a program, and contingent on continued funding, and satisfactory performance review(s), the appointment of a Tenure Track (Term) Assistant Professor is normally renewed for a second three-year term. Further renewals are contingent on progress toward

academic promotion on the timeline prescribed in USMA Reg 150-3 and may not extend beyond the end of the tenure-seeking period before a promotion decision is made.

(b) Decision Authority. The Department Head or equivalent unit leader will make the determination on renewal of Tenure Track (Term) Assistant Professor appointments based on the conditions prescribed in this regulation. When, on the basis of the substantial change of a program or unsatisfactory performance, a Tenure Track (Term) Assistant Professor appointment is not renewed, the affected faculty member may request that the first general officer in the chain of command review the decision.

(c) The NTE date of a Tenure Track (Term) Assistant Professor who applies for and is not selected for academic promotion within the timelines prescribed in USMA Reg 150-3 is normally extended to the end of the academic year following the academic year of the application for promotion. Further renewals or extensions are not allowed unless the promotion decision is reversed or additional tenure-seeking time is granted.

(d) The NTE date of a Tenure Track (Term) Assistant Professor who does not apply for academic promotion within the timelines prescribed in USMA Reg 150-3 will not be extended beyond the end of the tenure seeking period.

(2) Tenure Track (Term) Associate Professors and Professors of Discipline. With consent of the Dean, the initial appointment of a Tenure Track (Term) Associate Professor or Professor of Discipline may be extended due to extenuating circumstances. However, the appointment will not be extended beyond the end of the academic year following the academic year of a decision not to grant tenure.

(3) Notification of the Decision Not to Renew.

(a) The Department Head or equivalent unit leader will, when possible, provide written notification to a Tenure Track (Term) faculty member of the intent not to renew an appointment prior to the start of the first academic day of the last academic year of the current appointment. A copy of the notice will be sent to the Dean's HR Branch for proper processing after the faculty member has been notified. Notification of a decision not to promote or a decision not to grant tenure in combination with the NTE extension normally granted in this situation satisfies this notice requirement.

(b) Except in a case of documented misconduct or poor performance, or a lapse in funding, a Tenure Track (Term) faculty member who is not being renewed or converted to a Tenured (Permanent) appointment and is not given this notice may request a single two-semester extension to the current appointment. A request for extension that is received prior to the NTE date and within 30 calendar days of a late notice of non-reappointment will normally be granted. Denial of a timely request for extension must be approved by the Dean (or Commandant for faculty in USCC). Nothing in this section prohibits the correction of an administrative error in the renewal process that is otherwise allowed under law and regulation.

e. Non-Competitive Conversion.

(1) A Tenure Track (Term) Assistant Professor who is promoted to the academic rank of Associate Professor within the timelines prescribed in USMA Reg 150-3 is non-competitively converted to a Tenured (Permanent) appointment in the Excepted Service at the beginning of the academic year following the promotion decision. If necessary, the current appointment is extended until the conversion is completed.

(2) A Tenure Track (Term) Associate Professor or Professor of Discipline who has completed two years of service on the USMA faculty in a Tenure Track (Term) appointment is, with a nomination from the PUSMA Department Head who is responsible for the faculty appointment and the approval of the Dean, non-competitively converted to a Tenured (Permanent) appointment in the Excepted Service. If necessary, the current appointment is extended until the conversion is completed.

#### **6-4. Tenured (Permanent) Title 10 Appointments**

Tenured (Permanent) faculty members serve in Permanent Excepted Service appointments and are not subject to renewal decisions. Permanent Excepted Service appointments are not available as initial appointments to Title 10 faculty positions.

#### **6-5. Faculty Members Hired in Term Appointments Under Previous Versions of USMA Reg 150-2**

Renewal expectations for faculty members with Term appointments in the Excepted Service who were hired or reappointed under previous versions of USMA Reg 150-2 are determined by the version of the regulation that was in effect at that time.

## **6–6. Title 10 Instructor/Senior Instructor of Military Science**

Title 10 Instructors/Senior Instructors of Military Science are credentialed by the Commandant of Cadets in accordance with USMA Reg 150-3. Except where explicitly specified, all policies in this regulation apply equally to Instructors/Senior Instructors and Instructors/Senior Instructors of Military Science.

## **Chapter 7**

### **Title 10 Career Model**

There are at least six components that all career models must address: acquiring, developing, employing, retaining, compensating, and administering talent. There are five primary domains in which USMA employs civilian faculty talent: teaching, scholarship, cadet development, service, and faculty development. Details of expectations in each domain are given in USMA Reg 150-3. Faculty members are assigned to a Department of Instruction, a Center, an organization, or a Staff, led by a Department Head, Center Director, organizational leader, or the Superintendent, Commandant or Dean, respectively. As most faculty members are assigned to Departments of Instruction, the term Department Head will be used generically in the following to refer to unit leaders.

#### **7–1. Acquiring Civilian Faculty Talent**

USMA must compete for talent with other top-tier institutions across academia, industry, and government. To effectively compete, USMA must establish networks and have a firm understanding of the unique nature of the underlying job market for each respective discipline.

##### *a. Identifying Job Markets.*

(1) USMA must be aggressive and diligent in its efforts to identify viable job markets from which to attract high-potential civilian faculty members. Each discipline has its own unique job market cycle and venues from which USMA can attract high-potential talent. USMA must continually adapt as job market conditions and venues change.

(2) When hiring, Departments should advertise for specific disciplinary expertise, where possible, to ensure that candidates meet the department's requirements. Job announcements must always be published in USAJobs, and this advertisement must meet OPM statutory criteria, which generalize requirements. Departments and centers should advertise job openings externally whenever funding permits. The Dean's Human Resources Branch and the Associate Dean for Talent Strategy can assist selection committee chairs in identifying appropriate journals, electronic outlets, or other advertising venues to ensure that the hiring process conforms to Army requirements. Advertisements must contain a salary range determined by the Vice Dean for Resources.

##### *b. Hiring of Title 10 Faculty Members.*

(1) In order to standardize processes, the Dean is the proponent for all hiring actions under the authority of 10 USC §7438 (i.e., Title 10 faculty hiring actions). This standardization is necessary so that Department Heads can hire talented individuals and remain within the parameters dictated by USMA Regulations and the Office of Personnel Management (OPM), such as Veteran and spouse preferences. The Dean's HR Branch supplements this regulation with specific, up to date guidance on Title 10 faculty hiring processes, to include timelines, checklists, memorandum templates and sample candidate rating matrices. This guidance is communicated to departments annually at the beginning of the academic year.

(2) Department Heads must identify unique talent requirements for each faculty position. These requirements should include skills, knowledge, and behaviors that are required of new faculty members. On the basis of this analysis, Department Heads will determine the possible conditions of the employment categories of Chapter 5 with consultation from their higher headquarters and the Dean's Civilian Faculty Coordinator prior to the initiation of any hiring action.

(3) Department Heads will establish selection committees to screen, interview, score, and recommend candidates for faculty positions at USMA. The committees will include several civilian faculty members and at least one senior military faculty member. Additionally, a portion of each committee will be of an academic rank that is equal to or greater than that of the positions being filled. A department memorandum is sufficient to establish the committee and its chairperson.

(4) Selection committees will use the talent requirements identified by the Department Head to develop assessment exercises and questions that will help the committee to score each applicant. If funds are available, Departments should conduct onsite interviews with prospective candidates. When organizations such as directorates or centers without faculty appointment authority as defined in USMA

Reg 150-3 engage in Title 10 faculty searches, the Departments of Instruction where the candidates would be appointed to the faculty will also rate and evaluate the finalists.

(5) All Title 10 hiring actions, regardless of directorate, will include a recruit fill ticket submitted through AutoNOA to the Dean's HR Branch box as the authorizer. Recruit fill tickets for term appointments will include the term length, funding source, and Tenure Track/Non-Tenure Track status.

(6) In consultation with the appointed selection committee, the Department Head selects new hires and proposes the initial pay step. When a Title 10 faculty member is hired with teaching duties in academic courses, the faculty member must be endorsed by all PUSMA Heads of the Academic Departments responsible for the academic courses before the selection is finalized. The Department Head nominates the candidate for appointment to an appropriate academic rank. Academic credentialing requirements, procedures, and approval authorities on initial appointment to the USMA faculty are specified in USMA Reg 150-3.

(7) Department Heads will work in conjunction with the Vice Dean for Resources to establish the pay step offering that best aligns with the candidates' skills and falls within the published salary range. Recommendations for USCC Title 10 faculty selections and appointments will be staffed via the Commandant of the Corps of Cadets as part of the approval process. Any divergencies between USCC and the Vice Dean for Resources will be resolved at the GO level between the Commandant and the Dean. The Dean is the final approving authority on all civilian faculty selections, initial step offerings, and Tenure/Tenure-Track designations regardless of academic rank or hiring directorate. These authorities may be selectively delegated to the O6 level within the Dean's Directorate.

(8) CHRA is the only government entity authorized to make an official job offer or a tentative job offer. Following a tentative job offer from CHRA, an official job offer is contingent on the completion of a successful background check and possibly other factors. Please consult CHRA if there are any questions on job offers.

(9) All new hires will receive a letter that contains the employment classification conditions from their Department Head and signed by the Title 10 Faculty Program Coordinator in the Dean's HR Branch. This letter will also include any notifications to newly appointed faculty members required by USMA Reg 150-3.

*c. Welcoming New Civilian Faculty Members.* Organizations will assign a currently serving faculty member as a sponsor to assist in all matters involved in onboarding new civilian faculty. New faculty members typically complete training and orientation conducted in the Departments of Instruction before being authorized by the responsible Department Head to serve as the instructor of record and recommend grades for cadets in academic courses.

## **7-2. Developing Civilian Faculty Talent**

USMA must continue to invest in developmental opportunities for civilian faculty members due to the rapidly changing nature of higher education and the need for faculty to be on the vanguard of those changes.

*a. Development Plan.* Civilian professional development is governed by a detailed professional development plan focusing on the five USMA faculty domains (teaching, scholarship, faculty development, cadet development, and service). In accordance with federal regulations, all civilian faculty members will cooperatively develop an annual performance plan with their rater that details expectations and objectives for each of these domains. As with the Officer Evaluation Reporting system for military officers, the civilian faculty member and rater (supervisor) must establish yearly objectives at the beginning of the rating period. Annual development plans will have at a minimum an interim review and an annual appraisal. The plan emphasizes discussion and joint decisions by the faculty member and the rater, with input from other mentor(s), on the specific developmental experiences designed to fulfill the mutual goals of individual career development and organizational enhancement. Each plan is uniquely tailored to the needs of the individual and the organization. The civilian faculty member and rater should revise and update the plan as required. Expectations about academic promotion and resourcing should be discussed as part of every annual counseling session and incorporated into every annual plan. The development plan serves as the basis of faculty members' annual evaluations. Currently, the annual development planning and evaluation process is administered through the Defense Performance Management and Appraisal Program. Development plans and accompanying reviews and appraisals are required for all Title 10 civilian faculty members, regardless of whether they are working at USMA, on a sabbatical, or working from a remote location.

*b. Credentials and Promotions.* USMA Reg 150-3 is the definitive authority on matters of academic credentialing and promotion at USMA.

(1) Opportunity to Pursue Promotion: In accordance with USMA Reg 150-3, USMA maintains a single standard for academic credentials and promotions for all members of the faculty who are eligible for the academic credential or promotion. The degree to which civilian faculty members are afforded opportunities to pursue academic promotions is impacted by the employment classification conditions enumerated in Chapter 5. Regular faculty members with Tenured (Permanent) or Tenure-Track (Term) appointments must be afforded the opportunity to pursue academic promotions within the context of their duties. Faculty members with other primary roles or terms of insufficient length may not be afforded the opportunity to develop across all five domains in the context of assigned duties and, therefore, may not be competitive for academic promotion. Regardless of employment terms, expectations about opportunities and prospects for academic promotion should be discussed and clarified as part of the annual evaluation cycle.

(2) Long-Term Plan and Mid-term Review: Civilian faculty members pursuing promotions to the ranks of Associate Professor or Professor of Discipline will have a longer-term plan (three to six years) with clearly articulated expectations about their anticipated promotion timeline, their duties within the five domains, and what is required to be recommended for academic promotion. In accordance with USMA Reg 150-3, Tenure-Track faculty will receive a written departmental or organizational level review near the mid-point of the tenure seeking period. The review recommends areas where the faculty member should focus in the remaining time before the anticipated nomination for academic promotion. In accordance with USMA Reg. 150-3, 6-3b(2), a copy of mid-term reviews must be forwarded to the Vice Dean for Academic Affairs and the Chair of the Credentials and Promotions Committee NLT than the first Monday after 15 June of the mid-term year.

(3) Promotion Timeline

(a) USMA Reg 150-3 establishes all timelines for academic promotion. Tenure-Track Assistant Professors must earn promotion to the rank of Associate Professor in accordance with the tenure seeking timeline specified in USMA Regulation 150-3 as a condition of continued employment.

(b) USMA Reg 150-3 specifies conditions under which the tenure seeking period may be extended in one academic year increments. When such an extension is granted, the faculty member's current appointment is also extended by one year such that the not-to-exceed date of the faculty member's final tenure-seeking Term appointment remains aligned with the final year of the tenure-seeking period.

*c. Facilitating Faculty Development.*

(1) Continued development of faculty through professional engagement is essential for Title 10 civilians, and the Academy is committed to sponsoring attendance of faculty members at professional meetings and through related scholarly activities as resources permit. Internal funding is administered by Department/Center/Program Heads to support faculty travel and research. When funded by USMA, faculty members will travel under official orders in accordance with Department of Defense travel regulations. When travel expenses are paid by an outside sponsoring agency, all faculty members will submit a request in advance of the travel to the USMA Ethics Counselor for review before accepting any funding from sources outside of the federal government.

(2) All Title 10 civilian faculty members are encouraged to seek internal and external sources of necessary funding to support their scholarship efforts. The Office of Research within the Dean's directorate will assist faculty members in complying with federal ethics requirements in seeking external support such as grants, and in matters pertaining to resource processing and human subjects reviews. Use of human subjects will be in accordance with AR 70-25 and DODD 3216.2. A detailed description of research support can be found in USMA Reg 150-6.

*d. Sabbaticals.* AR 150-1 authorizes USMA to administer sabbaticals to further the professional development of the faculty. Eligibility and requirements for sabbaticals are detailed in USMA Reg 150-5. Faculty working at a location outside of West Point's locality rate will have their pay changed to reflect the appropriate locality pay.

*e. University Exchange.* An agreement may be made with another institution whereby a tenured USMA civilian faculty member teaches at another university in exchange for the other university sending a visiting professor of comparable academic rank to USMA for a specified period of time. This university exchange provides an opportunity for tenured USMA civilian faculty members to learn about other institutions and gives USMA the opportunity to gain insights from members of other academic institutions. This will be classified as an IPA and does not constitute a sabbatical.



### **7-3. Employing Civilian Faculty Talent**

a. USMA understands that to effectively prepare leaders of character for a lifetime of service, its faculty must provide the institution with a wide range of disciplines, experiences, and ideas.

b. Employing civilian faculty talent is closely linked with developing civilian faculty talent. In addition to employment in the five domains, civilian faculty members with sufficient seniority may be required to supervise and evaluate military and other civilian personnel as part of a research center, academic program, department, Dean or Superintendent-level function.

### **7-4. Retaining Civilian Faculty Talent**

USMA desires to retain top civilian faculty talent. A healthy, positive, and welcoming work environment in which faculty members' work is supported and valued is critical to faculty retention. Beyond their valuable contributions to USMA, civilian faculty members may also retire, resign, or have their appointments expire. The following items provide examples of how USMA endeavors to retain civilian faculty talent.

a. *Open Communication.* Among the critical features of any talent retention strategy are frequent feedback and open communication. The annual performance plan and appraisal system provide formal means by which feedback and open communication can occur. Regular interaction with the rater and Department Head further ensures that feedback and open communication occur with all civilian faculty members.

b. *Civilian-Military Parity in Local Policies.*

(1) While making unique contributions to the blend of excellence, civilian and military faculty members must work as a unified team in nearly identical duty assignments. To foster faculty unity, USMA applies the same local policies and regulations to civilian and military faculty members unless differences are necessitated by law or regulation. In cases where local policies cannot apply equally to civilian and military faculty members, every effort is made to adopt policies that promote a sense of parity among all components of the faculty. When allowed by law or regulation and when consistent with USMA's mission, USMA will adopt policies with respect to all faculty members that are aligned with generally accepted practices at other institutions of higher education.

(2) As recognized in AR 150-1 Chapter 11, USMA's unique mission requires exceptions to regulations to perform nonstandard Army functions. Administrative processes are available to request exceptions to regulations or changes to federal law. Faculty members or governance bodies may make recommendations for exception to regulations or changes to federal law to improve faculty integration or alignment with norms of higher education through the chain of command or governance channels to the Academy Leadership.

c. *Civilian-Military Protocol Equivalents.*

(1) Civilians are not military members by virtue of their membership on the USMA faculty, nor are they subject to UCMJ. However, in order to function as a unified faculty, at times it is necessary for civilian faculty members to work within the formalities of the hierarchical military etiquette, such as during faculty processions and other ceremonies. At such times, the following protocol equivalencies apply:

- (a) Instructor or Senior Instructor/Captain
- (b) Assistant Professor/Major
- (c) Associate Professor/Lieutenant Colonel
- (d) Professor of Discipline/Colonel

(2) Protocol equivalents also suggest the necessary authority to carry out assigned duties. Military faculty members and cadets should recognize the experience and appropriate authority of civilian faculty members within the context of those duties. Both military and civilian faculty should strive to achieve a balance of mutual respect and support.

d. *Professor Emeritus/Emerita.* Following a career of exemplary service, faculty members may be nominated for the academic title of Professor Emeritus/Emerita as described in USMA Reg 150-3. When resources are available, Department Heads may authorize the use of office space, the library, network access, and technical support for Professor Emeritus/Emerita faculty members. On request, Professors Emeritus/Emerita may retain their westpoint.edu O365 accounts for continued access to email and Teams. These accounts are paid for with Dean's unrestricted gift funds, and requests must be renewed annually.

e. *Reemployed Annuitant.* Civilian faculty members nearing the end of their careers may retire and be employed as reemployed annuitants. Reemployed annuitants are paid for the work that they conduct,

but do not receive standard benefits. For example, they can be paid by the number of sections or amount of research completed, and not be required to conduct standard administrative requirements. Reemployed annuitants normally work semester to semester at the request of USMA and are subject to changing departmental requirements and the availability of funds. By regulation, Reemployed Annuitants may be terminated at any time.

*f. Resignation.* There is no formal requirement for advance notification when a civilian faculty member decides to resign; however, faculty members are encouraged to notify Academy leadership as far in advance as possible to ensure that there is minimal impact on the Academy's mission. Ideally, the effective date of faculty resignations will coincide with the end of an academic term in order to minimize disruption of the teaching mission. Faculty members who notify Academy leadership of their intention to resign at a future date will not be compelled to resign sooner or be assigned additional workload as a result of their notice.

*g. Retirement.* Civilian faculty members participate in the Federal Employees Retirement System (FERS and FERS-FRAE), the Thrift Savings Plan (TSP), and the Social Security retirement system. Information about FERS, FERS-FRAE, and TSP can be found through the Army Benefits Center - Civilian website.

*f. Part Time Title 10 Employment.* Contingent on available resources, with the recommendation of the Department Head, and with approval by the Dean, Title 10 faculty members may change to part time employment status.

## **7-5. Compensating Civilian Faculty Talent**

### *a. Salary Schedule.*

(1) The Secretary of the Army determines the salary schedule for Title 10 civilian faculty members. This salary schedule is modified based on changes Congress authorizes for Federal employees paid under the Classification Act. Headquarters, Department of the Army (HQDA) makes pay adjustments to the Title 10 salary schedule on the same basis as those increases made to the General Schedule salary schedule. The term "academic rank" on the schedule refers to the academic grade of an individual, and the term "step" refers to the salary level within the academic grade. If the current pay table does not include the grade of Senior Instructor, faculty members with the academic rank of Senior Instructor serve in the grade of Assistant Professor. The salary schedule is published annually and CHRA makes it available to all Title 10 civilians.

(2) For each academic grade there is a corresponding maximum step. Currently faculty members in the grade of Instructor are capped at step 26, and faculty members in the grade of Assistant Professor are capped at step 42. Additionally, overall Title 10 civilian salaries are capped at Level III of the Senior Executive Schedule. Faculty members who have reached the caps in their grade are not eligible for further in-grade steps. Faculty members who reach the salary cap will continue to receive available in-grade steps, but their actual salary will be limited by the salary cap.

### *b. Step Increases and Performance Awards.*

(1) All step increases are subject to the availability of funding. The USMA G8 will work with HQDA to obtain funding in support of civilian faculty step increases. All Title 10 civilian faculty members who are in TDA positions and paid with appropriated USMA funds will receive a 1-step longevity increase during the first pay period in September on completion of at least 18 months of employment since the initial date of employment and every two years of employment thereafter provided the faculty member has completed his/her components of the annual appraisal by August 15th. The step increase will occur unless the Department Head or equivalent rater does not nominate the faculty member for the increase based on unacceptable performance. Non-nominations must be consistent with the annual performance review. Faculty members who are not nominated for an anticipated longevity step increase must be counseled in writing before the date that nominations are due. Faculty members in gift-funded or reimbursable-funded positions will receive longevity step increases on the same basis, provided that these increases are allowed and paid for by the funding source.

(2) Title 10 faculty members promoted from the academic rank of Instructor/Senior Instructor to Assistant Professor will receive a minimum of a 1-step increase in September of the year of promotion. Title 10 faculty members promoted from the academic rank of Assistant Professor to Associate Professor will receive a minimum of a 2-step increase in September of the year of promotion. Title 10 faculty members promoted from Associate Professor to Professor of Discipline will receive a minimum of a 4-step increase in September of the year of promotion. Any increases beyond the 1-step, 2-step, or 4-step

minimums will be recommended by the Department Head, informed by an analysis of current market conditions as determined by the Vice Dean for Resources, and approved by the Dean of the Academic Board. Step increases on promotion for faculty members in gift or appropriated funded positions are subject to available funds from the funding source.

(3) In order to recognize outstanding faculty contributions, Title 10 faculty members are eligible for cash awards and merit step increases beyond longevity and promotion step increases. Appendix E prescribes procedures and implementing guidance for faculty performance awards.

*c. Payment.* Faculty members receive 100 percent of their annual rate of pay, pro-rated for any days in a non-pay status within the pay period, in biweekly increments. If faculty members are in a non-pay status for a period of less than one year, USMA covers their life insurance, but they are responsible for reimbursing the government for the employee portion of the health insurance premium. No other benefits are covered during the non-paid time. Government service toward retirement during a non-pay status is determined in accordance with the rules that apply to Civil Service federal employees. Certification of an electronic time card at the end of each two-week pay period is the current administrative mechanism for initiating faculty pay. Guidance for filling out the time card is given below.

*d. The Army Benefits Center – Civilian (ABC-C).* The ABC-C website (currently reachable through <https://portal.chra.army.mil/abc>) contains the latest information on Retirement Plans, Family Medical Leave, Disability Benefits, Death Benefits, Life Insurance, and Health Benefits. Additional information is available from CHRA.

*e. Outside Employment.* All faculty members must comply with West Point Reg MR-600-1-2 when engaged in outside employment or business activity.

*f. Use of Government Resources for Scholarship.* Faculty members in a pay or non-pay status may use their government office, laboratories, equipment, computer, clerical personnel, and supplies for official purposes such as scholarly research, writing and publication relating to their academic duties (to include participation in activities of professional associations and learned societies), and the preparation and delivery of papers at conferences or publications in scholarly or professional journals. Faculty members may also make use of Federal government resources such as internet access, computers, libraries, and similar resources for scholarly research, writing, and publishing work outside of their academic duties, provided that such use creates no significant additional cost to USMA and that the work does not interfere with performance of their duties or reflect adversely on the DoD or USMA in accordance with the Joint Ethics Regulation (DoD 5500.07R, 2-301(4)b). They may not, however, use government offices, clerical personnel, equipment, or supplies for private gain. Faculty members using funds, equipment or support obtained from non-governmental sources, including grants and unrestricted gift funds from the Association of Graduates, must ensure they understand the regulations governing the acquisition and use of these resources. See the USMA Reg 150-6 Academy Research for additional details on faculty scholarship.

## **7–6. Administration of Civilian Faculty Talent**

### *a. Workplace and Schedule Flexibilities.*

(1) Official worksite. Unless indicated otherwise on a Remote Work Agreement, the official worksite and primary place of duty for Title 10 faculty is at West Point. Remote work (i.e., when faculty members perform their official duties at an approved alternative worksite without regularly returning to West Point during each pay period) and routine telework are authorized only by exception, and the Dean's HR Branch shall review all proposed Remote Work Agreements for compliance with current Army, DoD, and OPM guidance.

(2) Situational telework. Title 10 faculty members who enter into a Situational Telework Agreement are authorized situational telework at an approved worksite, such as a personal residence, due to hazardous weather or other compelling agency needs. The Dean's HR Branch maintains standardized Situational Telework Agreements for all Title 10 faculty members. The first GO in the supervisory chain is the exception authority for deviations from the standardized agreements. Title 10 faculty members who are authorized situational telework are not authorized weather and safety administrative leave unless it is not possible to work from home safely.

(3) Workplace. Faculty work includes, but is not limited to, planning, grading, reading, writing, analysis, researching, teaching, scholarly service, facilitating extracurricular activities, mentoring, and administration. This work is carried out in places such as academic department areas, classrooms, research centers, laboratories, meeting spaces, and field locations both on and off post.

(4) Accountability. While working outside their departmental area, faculty members are responsible for remaining in contact with, and responsive to, the department supervisory chain and the needs of cadets. When working off post, Title 10 faculty members must keep their supervisors informed of their general whereabouts. When working more than 50 miles from West Point, Title 10 faculty members should either be on travel orders or develop a written work plan in coordination with their supervisors or Department Heads.

(5) Flexible schedule. The varied duties of the USMA faculty members require flexible work schedules. For example, classroom requirements usually occur during the day, but many other activities, such as club meetings and lectures, take place in the evening. In the pursuit of professional excellence, work such as attendance at conferences or leading Academic Individual Advanced Development experiences may require many hours of travel and other work for many consecutive days, including weekends and holidays. To accommodate these varied demands on faculty time, USMA does not proscribe fixed duty hours for Title 10 faculty members. The times at which faculty members conduct their work activities is left to the responsible discretion of the faculty member, subject to specific mission requirements (e.g., class and meeting schedules) as determined by the Department Head.

*b. Time Cards.*

(1) Currently, all Title 10 faculty members must complete a time card that initiates salary payment in the Automated Time Attendance and Production System (ATAAPS) system. Although Title 10 civilian faculty members are paid by the same administrative mechanism system as Competitive Service (i.e. Title 5) employees, they are professional educators who are hired at an agreed upon salary. They are not hourly employees. However, civilian faculty members must still account for at least 80 hours over each two-week pay period. Title 10 civilian faculty members are Fair Labor Standard Act (FLSA) exempt employees. Title 10 faculty members are not entitled to overtime pay or compensation time when working more than 80 hours in a pay period. The flexible workplace and work schedule described above provides a way for civilian faculty members to put in additional effort when needed and adjust hours across a two-week pay period. However, it is expected that all civilian faculty members will meet attendance requirements for classes, meetings, or the like as stipulated by their Department Heads; this may include rare but sometimes necessary Saturday classes.

(2) The USMA Superintendent acknowledges the inflexibility of the Army's time card system, and that the hours recorded by Title 10 civilian faculty members do not reflect hours worked on particular days, but instead signify the fulfillment of all of the requirements of their job during that pay period. The system also ensures that all leave hours are recorded on the day the leave was taken. The certification of 8 hours per week day/40 hours per week/80 hours per pay period is an accommodation to the ATAAPS only. The Superintendent, under the authorities of 10 USC §7438 as delegated in AR 150-1, affirms that certification of the time card as directed in this regulation does not constitute falsification of an official record by an individual employee, his or her supervisor, or any other official involved with civilian faculty time keeping at USMA. Unless issued guidance by their Department Heads or equivalent, civilian faculty members will not annotate hours on weekends or federal holidays. This is not to say that individual faculty schedules did not require weekend hours or that faculty members did not elect to work on Holidays. This rule is in place to minimize pay errors.

(3) Paid federal holidays are part of Title 10 faculty members' compensation, and their observation is a reflection on institutional discipline. Further, holiday pay serves as an institutional disincentive to require holiday work unnecessarily. While they may elect to work without additional compensation on federal holidays, faculty members will not be scheduled for mandatory duty requirements on federal holidays without the express approval of the Superintendent. Faculty members who are required to work on federal holidays will be authorized through the chain of command to report these hours on their time cards and will be compensated at the rate determined by federal civilian pay rules.

*c. Administrative and Annual Leave.*

(1) When Title 10 faculty members take approved time off from work for vacation, personal reasons, or emergency purposes for which other forms of leave are not available, they must account for these absences by charging annual leave on their time cards. Civilian faculty members who wish to engage in less than full time work during a pay period must request leave and charge it on their time cards. Title 10 faculty members are not expected to charge leave when being away from the local commuting area during normal business hours is due to an agreed upon shifting of work to other days, working from a remote location (Flexible Workplace) as coordinated with the chain of command, or working under a formal telework agreement, provided that they remain reasonably responsive and available to attend to

emergent duty requirements as specified by their chain of command. Otherwise, faculty members who intend to be unavailable at specific scheduled times or plan to be away from the local commuting area for personal reasons during normal business hours must take leave.

(2) As time off is managed through an annual leave system, civilian faculty members must continue to account for a combination of leave and full-time work during academic recesses such as Thanksgiving leave, winter break, and spring break. When a faculty member is working less than full time during the pay periods that span these recesses, leave must be charged.

(3) Department Heads have the authority and responsibility to determine when faculty members may take annual leave. Regular leave requests should be approved in advance and leave must be taken when it will not unduly interfere with the ongoing work of the department. Leave may be taken in conjunction with temporary duty when faculty members plan to combine personal business with attendance at a conference or research site provided that it does not result in additional cost to the government. Faculty members should submit requests for leave as far in advance as possible and should consult with their supervisor to schedule leave for the most mutually advantageous time.

(4) Title 10 faculty members earn leave during each full biweekly pay period while in a paid status or in a combination of a paid and non-paid status. Leave is not earned during pay periods when a faculty member is not in a paid status. At the time of this publication, the amount of leave earned each period is based on the faculty member's length of federal service:

- |                         |                             |
|-------------------------|-----------------------------|
| (a) 0-less than 3 years | 4 hours/biweekly pay period |
| (b) 3-15 years          | 6 hours/biweekly pay period |
| (c) Over 15 years       | 8 hours/biweekly pay period |

(5) Part-time faculty members earn leave on a pro-rated basis. Prior Federal civilian service and/or honorable active military service is creditable for leave accrual purposes, except for retired regular military personnel. CHRA can explain what active military service is allowable. Civilian faculty members may carry up to 240 hours (30 duty days) of accumulated leave from one calendar year to the next. Annual leave beyond 240 hours will normally be lost if not used before the end of the leave year. Donation of annual leave to other Army civilians is possible as defined below.

*d. Sick/Family/Medical/Reserve Leave.*

(1) The supervisor grants sick leave when a faculty member is incapacitated for duty because of sickness or injury or when the faculty member is absent for their own medical, dental or optical examination, or treatment, or a for a family member's medical, dental or optical examination, or treatment. Faculty members are expected to schedule routine medical appointments so as to minimize their absence from teaching and other scheduled duties. Title 10 faculty members earn sick leave at the rate of four hours per biweekly pay period, or thirteen days per year. There is no cap on accumulation of sick leave. Sick leave is accrued only while in a paid status.

(2) In addition, Title 10 faculty members are entitled to the additional sick leave benefit provided to all federal employees under the provisions of the Federal Employees Family Friendly Leave Act, PL 103-388. This benefit includes the use of up to 40 hours of the employee's accrued sick leave in order to care for family members who are ill or to arrange and attend funerals for family members. It also allows requests for the use of an additional 64 hours of sick leave for these purposes if this does not cause the employee's own accumulated sick leave to drop below 80 hours.

(3) Title 10 faculty members are entitled to the family and medical leave benefits, to include parental leave, provided to all federal employees.

(4) Title 10 faculty members who are reservists in the armed forces or members of the National Guard are authorized leave to engage in official training in accordance with federal regulations. Faculty members must be in a paid status to receive military leave.

(5) The Voluntary Leave Transfer Program is a program whereby civilian employees may donate portions of their available annual leave to other employees for medical emergencies; extended parental leave; the placement of a child with the faculty member for adoption or foster care; the care of a spouse, child or parent with a serious health condition; or a serious health condition of the employee. Title 10 faculty members may fully participate in the program either as donors or recipients. Interested employees must submit a Potential Leave Recipient Application through their supervisor to CHRA. Employees interested in donating leave may submit a Request to Donate Annual Leave to Leave Recipient directly to CHRA.

(6) There are many other justifications for an individual to request leave without pay. Approval of the leave without pay request may be optional with USMA or mandatory based on government regulations.

See the ABC-C (currently reachable through <https://portal.chra.army.mil/abc>) website for more details. Title 10 faculty members may request leave without pay through their Department Heads for approval by the Dean, Commandant, or Superintendent as appropriate. This approval authority is not further delegated.

*e. Professional Conduct.*

(1) Appearance: Faculty members should present a neat and professional appearance in the classroom and during their work hours at USMA. This should also apply when faculty members are representing the Academy in any setting. Civilian faculty members should maintain neat and professional standards of grooming and attire, dressing at a level of formality equivalent to the uniform for the occasion. The civilian equivalent to the "Class B" duty uniform is a dress shirt (long or short sleeve) or other comparable civilian professional attire. The "Class A" uniform is more formal, equivalent to a civilian suit or jacket and tie or other comparable civilian professional attire. When the military duty uniform is the field uniform, civilian faculty members may wear casual attire conducive to promoting the unity and esprit d'corps of the Military Academy.

(2) Faculty-Cadet Personal Relationships: The relationships between faculty and cadets should be friendly, but they must not diminish the faculty member's position as academic leader and role model. While social and professional interactions are encouraged, faculty members may not date or have physical contact of an intimate or sexual nature with cadets. There is no exception for consensual relationships or for consensual intimate or sexual contact.

(3) Faculty-Cadet Financial Relationships: Faculty members may not ask, hire, or permit cadets to provide personal services, such as babysitting.

*f. Government Shutdowns and Furloughs.* While historically rare, government shutdowns and furloughs have occasionally impacted civilian faculty members through delayed or lost pay. In times when government shutdowns or furloughs impact the civilian faculty, in accordance with federal rules, civilian Title 10 faculty members may be required to report to work the morning of the shutdown to receive guidance in writing. The Superintendent and Department of the Army will determine which civilian faculty members are impacted by shutdowns, and leadership will provide direction to Department Heads and their equivalents as to how to conduct an orderly shutdown.

*g. Dependent Identification Cards.* Title 10 faculty dependents are eligible to receive identification credentials that afford them access to the Academy grounds. These credentials validate that Title 10 faculty dependents have access to certain Morale Welfare and Recreation (MWR) facilities and social events. These credentials do not grant them access to the central post area or any academic buildings. Dependents must be escorted in these areas. The West Point Garrison maintains the policies governing dependent identification credentials and access. As of the publication date of this regulation, depending upon employment status, dependent IDs are valid for up to five years. Faculty members should consult MWR to determine whether children need IDs for particular activities.

*h. Civilian Faculty Members Residing on Post.* Military members have priority for on-post housing. If excess on-post housing is available, civilian faculty may apply. Title 10 faculty members who reside in on-post housing are granted access to the DoDEA elementary and middle school. Title 10 civilian faculty members residing on post must abide by all rules and regulations pertaining to housing and residing at West Point. The West Point Garrison maintains the policies governing these programs.

*i. Civilian Honorary Awards.* Title 10 civilian faculty members may receive honorary awards for performance, service, and contributions made to the Academy. See Army Regulation 672-20, Chapter 8, and/or Department of Defense Instruction 1400.25 Volume 431, "DoD Civilian Personnel Management System: Performance Management and Appraisal Program," Chapter 5, for a description of all honorary and incentive awards.

*j. Elimination of Civilian Title 10 Positions.* Title 10 positions may be eliminated for the following reasons: financial exigency, substantial change to a program, or a lapse in funding for gift fund or reimbursable fund positions. USMA Leadership will brief the Faculty Council in situations where there is a need to eliminate any appropriated fund USMA TDA civilian faculty positions. Taking the feedback from the Faculty Council into consideration, the Dean or Commandant will make a final decision, and if required, work with the CHRA to process the abolish action and any necessary reassignments or terminations in accordance with the Reduction in Forces provisions of 5 CFR 351. Terminations for financial exigency or substantial change of a program shall normally take effect at the end of the academic year or nine months after notification, whichever is later. Any appeal actions will adhere to the rules established by the Merit Systems Protection Board. All reasonable efforts will be made to reassign

civilian faculty member(s) impacted by the TDA positions that are eliminated. Reimbursable positions may be eliminated at any time based on funding or other changes in mission requirements.

## **Chapter 8**

### **Civilian Faculty Advisors**

**8–1.** The Dean and Commandant will designate a combined total of two tenured civilian faculty members from different departments to serve as Civilian Faculty Advisors (CFAs). CFAs will advise the Academy leadership on matters related to the civilian faculty, advise civilian faculty members on matters related to USMA, and advise the USMA leadership in cases of dispute or grievance. The CFAs will provide advisory expertise and clarity on matters such as career progression, development, compensation, academic promotion, retirement, and administrative actions. The CFAs will also be available to meet with members of the USMA Board of Directors as required to address concerns or grievances. CFAs will not advise petitioners as part of a formal grievance process so that they may remain objective advisors to USMA leadership.

**8–2.** Selection of the CFAs is as follows. One of the two designees will be selected by the Superintendent's Civilian Faculty Advisory Council for a two-year term. The other designee is appointed by the Dean in consultation with the Commandant. This designee serves a one-year term, may be renewed for up to two additional terms, and may be reappointed after stepping down for at least one year. The Dean and Commandant will solicit nominations for the CFA appointment.

**8–3.** To compensate for their increased service load, CFAs will receive a reduced teaching load as determined by the Dean and Commandant. To avoid potential conflicts of interest, during their tenure, CFAs may remain in their current rating chain or elect to be rated by the Dean, Commandant, or Superintendent. The two CFAs will also be from different departments, which further mitigates potential conflicts of interest in particular matters. CFAs are authorized to attend training relating to their duties as required.

## **Chapter 9**

### **Grievance Procedures**

**9–1.** Like other USMA employees, Title 10 employees who have a dispute or disagreement should first attempt to resolve it, formally or informally, through the chain of command within their assigned organizations. Every employee has the right to present complaints to the chain of command and to the USMA Inspector General (which operates outside the USMA chain of command). Sexual assault and other criminal allegations should be presented to the Provost Marshal's Office. Sexual harassment complaints, as well as other Equal Employment Opportunity complaints, may be made to the USMA EEO Office. Additionally, Title 10 employees may avail themselves of the normal administrative grievance procedure found in DoDI 1400.25.

**9–2.** All members of the USMA faculty are entitled to the exercise of academic freedom as described in USMA Reg 150-4. Grievances concerning violations of academic freedom may be raised through the processes specified therein. Additional grievance processes may be authorized in other regulations.

## **Chapter 10**

### **Unacceptable Performance, Misconduct, Administrative Sanctions, Termination Procedures, and Criminal Charges**

This chapter outlines procedures for responding to allegations of unacceptable performance or misconduct on the part of Title 10 civilian faculty members. Credible allegations require USMA to protect itself, the cadets, the staff and the faculty, to ensure that the due process rights of the accused are protected, and to impose proportional, fair, and uniformly enforced sanctions in accordance with regulations and applicable law. Credible allegations of criminal misconduct will be referred to the Provost

Marshal's Office, the Criminal Investigative Division, or other appropriate law enforcement authorities through the SJA.

#### **10–1. Administrative Sanctions for Poor Performance**

Title 10 faculty members are expected to perform their duties and requirements to standard. For a faculty member with one or more years of current continuous Title 10 service, reoccurring unacceptable performance as determined in annual performance evaluations may result in adverse administrative action in accordance with either 5 CFR Part 432 – Performance Based Reduction in Grade and Removal Actions or 5 CFR Part 752 – Adverse Actions as authorized in 5 USC Chapter 43 and 5 USC Chapter 75. Both administrative processes provide an opportunity for the faculty member to respond to any proposed sanction prior to a final Agency-level decision and may allow for appeals to the Merit System Protection Board.

#### **10–2. Administrative Sanctions for Misconduct**

a. Title 10 employees who have misconduct allegations made against them should expect to be contacted by their Department Head or supervisor. Administrative investigations and responses to allegations of misconduct are conducted in accordance with 5 CFR 752 – Adverse Actions as authorized in 5 USC Chapter 75. The allegation will be investigated by the faculty member's supervisor or other appropriate member of the organization. Department Heads can seek advice from CHRA prior to initiating an investigation in order to avoid procedural missteps.

b. If the allegation is determined to be factually founded, a proposing official and deciding official will be appointed in consultation with CHRA and possibly SJA. The proposing official will propose an appropriate administrative sanction and notify the faculty member against whom the action is proposed in writing. The faculty member will be given a reasonable opportunity to answer the allegation and proposed sanction prior to its referral to the deciding official. The deciding official will make the final agency determination as to the appropriate sanction, if any, which ranges from admonition to termination. If, in accordance with civilian personnel regulations, the deciding official needs to be at a higher level than the Department Head because of the Head's role in the investigation, or if the action might result in loss of pay or termination, Academy leadership in coordination with CHRA will determine the deciding official.

c. The deciding official's decision may be appealed to the Merit Systems Protection Board in accordance with its rules (e.g., suspensions without pay for more than 14 days or more severe), or to the EEO office if appropriate. There is no obligation for the faculty member to appeal the decision, which normally becomes final 30 days after the date the decision is served. If, during the investigative process, the investigator or deciding official decides that a formal investigation is required, that person will contact CHRA, which will work with the department to ensure the investigation occurs thoroughly, fairly, and expeditiously. If it appears that a crime has been committed, the departmental investigator or deciding official will contact the SJA for further referral to the appropriate authorities.

#### **10–3. Termination of Tenured Faculty Members**

a. Termination of Tenured (Permanent) faculty members will only be for abolishment of a position due to lapse in funding, financial exigency or substantial change of a program, or for adequate cause as determined under the procedures defined in Title 5, CFR Part 432 (unacceptable performance) or Part 752 (unacceptable performance or misconduct). For example, a documented finding of recurring unacceptable performance, or egregious or criminal misconduct, constitutes adequate cause. The American Association of University Professors' publications are a source of additional guidance on the norms of professional conduct in the academic setting.

b. The proposed removal-for-adequate-cause of a Tenured (Permanent) faculty member will be processed under the authorities of 5 USC Chapter 75, as implemented in 5 CFR Part 752. The faculty member may elect to answer the proposed removal in accordance with 5 USC 7513(b)(2), and/or in a hearing as provided for under 5 USC 7513(c).

c. Should the concerned faculty member elect to answer in a hearing, the hearing panel will be comprised of one of the two Civilian Faculty Advisors and two additional faculty members—one selected by the Academic Freedom Advisory Council, and one selected by the Credentials and Promotions Committee. The panel member selected by the Academic Freedom Advisory Committee will have a minimum of three years' experience as a rater or supervisor. A minimum of two panel members will be tenured Title 10 faculty members, and all panel members must equal or exceed the academic rank of the



impacted faculty member. Once constituted, the panel will expeditiously review any evidence obtained in the investigation, considered in the proposal or presented by the concerned faculty member, and hear the concerned faculty member's answer. The panel will not interview witnesses or otherwise collect additional evidence, nor will its members discuss the ongoing proceedings with others without the express approval of SJA and the deciding official. In the case of sensitive or confidential evidence, the panel will be presumed to have the same legitimate need to know as the deciding official and be advised by SJA on the proper handling of such information.

*d.* Based on the evidence reviewed and the answer of the concerned faculty member, the hearing panel will make a written recommendation as to whether clear and convincing evidence of adequate cause for termination has been demonstrated. The proposal, answer and recommendation of the panel will be forwarded to the deciding official for consideration and determination of USMA's final decision. The panel's recommendation will also be provided to the concerned faculty member. A final decision by USMA to terminate a faculty member may be appealed to the Merit System Protection Board.

**Appendix A**  
**Exceptions to Civil Service Rules for Title 10 Faculty Members**

| <b>Exception</b>                                                                                 | <b>Regulatory Citation</b>                | <b>USMA Requested Exceptions</b> |
|--------------------------------------------------------------------------------------------------|-------------------------------------------|----------------------------------|
| Positions are not classified in accordance with federal classification standards                 | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 51               |
| Positions are not required to have a position description                                        | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 51               |
| Employees are compensated based on academic rank                                                 | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 51               |
| Pay scale is unique to Title 10 Faculty at West Point                                            | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 55               |
| New hires can have pay set at any step within the pay scale for a given academic rank            | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 55               |
| Employees are not entitled to overtime, evening, weekend or Sunday premium pay, or to comp time. | 10 U.S.C. 7438; AR 150-1                  | Title 5 Chapter 55/61            |
| Vacant positions are not subject to the DoD Priority Placement Program                           | DOD Priority Placement Manual, Chap 3c 18 | Yes                              |
| Sabbatical program is common practice                                                            | AR 150-1                                  | No                               |
| Employees do not receive Within Grade Increases                                                  | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 55               |
| Flexible work schedule                                                                           | 10 U.S.C. 7438; AR 150-1                  | Title 5 Chapter 61               |
| Employees eligible to receive a step increase at any time                                        | HQDA Letter 690-93-1, dated 29 Dec 1993   | Title 5 Chapter 55               |

## Appendix B

HQDA Ltr 690-93-1 dated 29 December 1993

167000Z 11:00 AM FROM HQDA LTR 690-93-1



DEPARTMENT OF THE ARMY  
WASHINGTON, D.C. 20310

HQDA Ltr 690-93-1



DAPE-CPE (14 June 1993)

29 December 1993

Expires 29 December 1995

SUBJECT: Administration of the Civilian Faculty of the Army War College, the U.S. Army Command and General Staff College, and the U.S. Military Academy

SEE DISTRIBUTION

1. Proponent and exception authority. The proponent of this letter is the ~~Deputy Chief of Staff for Personnel (DCSPER)~~ <sup>ASA (M&RA)</sup>. The DCSPER has the authority to approve exceptions to this letter that are consistent with controlling law and regulation. The DCSPER may delegate this authority in writing to a division chief within the proponent agency in the grade of colonel or the civilian equivalent.

2. Purpose. This letter establishes employment and salary policies applicable to the civilian faculty of the Army War College (AWC), the U.S. Army Command and General Staff College (USACGSC), and the U.S. Military Academy (USMA) covered under sections 4021 and 4331(c), title 10, United States Code (10 USC 4021 and 4331(c)). This letter expires on the date indicated above unless earlier superseded or rescinded.

3. Background. Section 1124 of the National Defense Authorization Act for Fiscal Year 1990, Public Law 101-189, added section 4021 to chapter 373 of 10 USC 4021, authorizing the Secretary of the Army (SA) to employ and prescribe compensation for civilian faculty members of the AWC and the USACGSC. Section 523 of the National Defense Authorization Act for Fiscal Year 1993, Public Law 102-484, amended 10 USC 4331 to add subsection (c), authorizing the SA to employ and prescribe compensation for civilian faculty members of the USMA. Specific faculty members included are professors, instructors, and lecturers. At the AWC and the USACGSC, these faculty members are involved in courses of instruction of 10 months or more in duration.

4. Explanation of abbreviations.

a. DCSPER ----- Deputy Chief of Staff for Personnel.

- b. HQDA ----- Headquarters, Department of the Army.
- c. SA ----- Secretary of the Army.
- d. USACGSC ----- U.S. Army Command and General Staff College.
- e. AWC ----- Army War College.
- f. USMA ----- U.S. Military Academy.

5. Responsibilities.

a. The Assistant Secretary of the Army (Manpower and Reserve Affairs) will provide overall Army policy and direction for implementing the provisions of 10 USC 4021 and 4331(c).

b. The ~~DEOPER~~ will issue Army title 10 Faculty Salary Schedules.

c. The commanding officer of each institution will establish and implement procedures for conducting personnel management for the title 10 civilian faculty consistent with this letter and may delegate these responsibilities, as appropriate.

6. Employment and salary policies.

a. Except as specified in this letter, all laws, rules, regulations, and procedures applicable to General Schedule employees under title 5, United States Code, apply to title 10 civilian faculty. All personnel actions will be accomplished providing equal employment opportunity regardless of race, color, religion, sex, national origin, age, handicapping condition, marital status, or political affiliation.

b. Conversion and coverage.

(1) USACGSC. Conversion of current employees from title 5 to title 10 will be voluntary. All vacant or new civilian faculty in covered positions will be covered automatically by the title 10 personnel system. Conversions will be effected with no loss in pay, leave status (see 5 CFR 630.301(c) for effect on subsequent earned leave), life insurance, health insurance, or retirement benefits. Employees who are converted to the title 10 system and who have personal career status under part 315, Code of Federal Regulations, will retain this status.

(2) USMA. The Superintendent will determine specific coverage in conformance with 10 USC 4331(c). Those employees whose positions are designated for title 10 coverage and who were employed on or before the effective date of this letter may elect

DAPE-CPE

SUBJECT: Administration of the Civilian Faculty of the U.S. Army War College, the U.S. Army Command and General Staff College, and the U.S. Military Academy.

to convert under the provisions of 10 USC 4331(c) or retain their current appointment status for a period of 18 months from designation of their positions for title 10 coverage. At the end of the 18 month period, all employees subject to conversion will be converted to excepted service appointments under the 10 USC 4331(c) personnel system or placed, separated, or terminated. Employees who are converted to the 10 USC 4331(c) system and who have personal career status under part 315, title 5, Code of Federal Regulations (competitive service employment), will retain this status. Conversion will be effected with no loss in compensation, academic status, life insurance, health insurance, or retirement benefits. All vacant designated civilian faculty member positions will be covered automatically by the 10 USC 4331(c) personnel system.

(3) AWC. Competitive service employees whose covered positions fall into the categories of civilian faculty members and who were employed on or before 6 October 1991, may, under the provisions of this letter, elect to retain their competitive service appointments or convert to excepted service appointments under the provisions of 10 USC 4021. Regardless of an employee's election, however, by 6 October 1996, all competitive service employees falling under the definition of covered civilian faculty members will be converted to excepted service appointments under the 10 USC 4021 personnel system or placed, separated, or terminated. Employees who are converted to the 10 USC 4021 system and who have personal career status under part 315, title 5, Code of Federal Regulations, will retain this status. All vacant civilian faculty member positions will be covered automatically by the 10 USC 4021 personnel system. Conversion will be effected with no loss in pay, leave status (see 5 CFR 630.301(c) and 5 USC 6304(c) for effect earned on leave), life insurance, health insurance, or retirement benefits.

c. Duties and titles (academic ranks). Each title 10 civilian faculty member will be assigned an academic rank for the purpose of establishing basic pay. These ranks will be described in the institution's personnel procedures manual. Office of Personnel Management classification standards do not apply to these positions, and formal position descriptions are not required.

d. Staffing. Detailed procedures and policies covering selections for appointment, reappointment, nonreappointment, academic ranks, promotion, length of appointment, educational requirements, and pay setting policies will be provided in the institution's personnel procedures manual.

12 20 00 11:30 AM FROM DIRECTOR OF USMA  
e. Pay. Army title 10 Faculty Salary Schedules will be issued by the Director of Civilian Personnel, DCSPER. Salary schedules will be established on a comparative basis with the General Schedule. Pay adjustments to this salary schedule will be made by HQDA on the same basis as those general comparability increases made to the General Schedule salary schedule.

f. Benefits. Civilian faculty members employed under 10 USC 4021 and 4331(c) are entitled to all regular Civil Service benefits; for example, health insurance and life insurance, retirement, leave, and so forth, on the same basis as employees of the competitive Civil Service.

g. Termination of employment. Procedures for termination will be consistent with applicable laws and regulations and will be published in the institution's procedural manual.

(1) Nonreappointment. If an appointment is not renewed, the institution will make a reasonable effort to provide 6 months advance written notice of the decision to the affected faculty member.

(2) Separation for cause. Any member of the civilian faculty may be separated for cause (that is, for misconduct, unacceptable performance, and so forth) irrespective of length of appointment, according to law and regulations governing civilian employment under title 5, USC.

(3) Resignations and retirements. Civilian members of the faculty will make a reasonable effort to give at least 6 months notice of intention to resign or retire.

h. Reduction in force. A lack of funds; a change in mission, workload, organization, or curriculum; or other similar and compelling reasons consistent with 5 CFR 351 may require a reduction in the number of civilian faculty positions. In such an event, the individual(s) affected will receive notice of reduction in force as required by law.

i. Performance appraisal. All members employed under title 10 Faculty Salary Schedules, except those serving in temporary positions of 120 days or less, or visiting faculty holding appointments of 1 year or less, will be evaluated annually.

j. Grievances and appeals. The institution's commanding officer may establish grievance and appeals procedures within the following limitations.

(1) Civilian faculty members employed under the title 10 system may grieve any personnel or academic action or decision affecting them and not covered by the following subparagraph.

DAPE-CPE

SUBJECT: Administration of the Civilian Faculty of the Army War College, the U.S. Army Command and General Staff College, and the U.S. Military Academy

(2) If the action being complained of is covered by 5 USC 7512 (removal, suspension for more than 14 days, reduction in grade or pay, or furlough for 30 days or less) or 5 USC 4303(e) (removal or reduction in grade for unacceptable performance) and the employee meets the service and/or preference eligibility requirements, the employee may then appeal the action to the Merit Systems Protection Board or grieve the action under the negotiated grievance procedure, if covered.

k. Miscellaneous. The commanding officer of the institution is granted the authority to establish other academic policies as necessary for the efficient operation of the institution. Additional policies may cover, but are not limited to, such topics as internal duty assignments, long-term training; sabbatical leave, participation in professional conferences, step increases, merit increases, bonuses, awards, and so forth.

BY ORDER OF THE SECRETARY OF THE ARMY:

*Milton H. Hamilton*

MILTON H. HAMILTON  
Administrative Assistant to the  
Secretary of the Army

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HQDA (DAJA-ZA)

## Appendix C

### Sample Categorization Letters



OFFICE OF THE DEAN  
UNITED STATES MILITARY ACADEMY  
WEST POINT, NEW YORK 10996-5000

MADN

10 August 2024

MEMORANDUM THRU Colonel Patricia W. Brown, Professor and Head, Department of Educational Studies

FOR Dr. Jane Doe, Assistant Professor

SUBJECT: Terms of your appointment at USMA

In accordance with USMA Regulation 150-2 the Civilian Faculty Career Model, all civilians directly contributing to the curricular program are provided a letter that categorizes the terms of their appointment at USMA. Our records indicate you first started working at USMA as a civilian faculty member 6/1/2024. The nine categories below, which have been determined by your Department Head, apply to your current appointment.

1. Faculty Member: Yes
2. Funding Source: Appropriated USMA Funds.
3. Academic Promotion: Contingent on meeting all appropriate requirements in USMA Regulation 150-3, you are eligible to seek promotion to Associate Professor.
4. Academic Tenure Status: Non-Tenure Track (Term): There is an opportunity for your continued employment on the USMA faculty in a series of term non-tenure track appointments, subject to job performance and the needs of the Academy. Except in a case of documented misconduct or poor performance, or a lapse in funding for your position, if your appointment will not be renewed, your Department Head will normally notify you in writing before the first class day of the last academic year of your current appointment. If this notice is given late or not given, you may request a two-semester extension to the Not to Exceed (NTE) date of your appointment. A request for extension that is received prior to the NTE date and within 30 calendar days of a late notice of non-reappointment will normally be granted. Denial of a timely request for extension must be approved by the Dean. Your appointment will expire on the not to exceed date shown on your SF50 in your electronic official personnel folder (EOPF).
5. Primary Role: Regular Faculty: You are expected to contribute in the domains of Teaching, Scholarship, Service, Faculty Development, and Cadet Development.
6. Academic Rank: Assistant Professor



MADN

SUBJECT: Terms of your appointment at USMA

7. Employment Classification: USMA TDA Position. This position is required and authorized by the Headquarters, Department of the Army.
8. Sabbatical: Position not eligible during this term appointment.
9. Education Level: Doctoral/Terminal Degree: Educational Studies

If there is a change in any of the categories above, you will receive a new appointment letter. If you have questions or concerns about the categories of your appointment, please consult your Department Head. Furthermore, information on the categories of your appointment can be found in USMA Regulation 150-2 or you may discuss them with the Assistant Dean for Civilian Faculty. USMA Regulation 150-2 can be found at the Dean's Policy and Regulation site.

Dr. John Smith  
Assistant Dean for Civilian Faculty  
Office of the Dean



OFFICE OF THE DEAN  
**UNITED STATES MILITARY ACADEMY**  
WEST POINT, NEW YORK 10996-5000

MADN

10 August 2024

MEMORANDUM THRU Colonel Patricia W. Brown, Professor and Head, Department of Educational Studies

FOR Dr. Jane Smith, Assistant Professor

SUBJECT: Terms of your appointment at USMA

In accordance with USMA Regulation 150-2 the Civilian Faculty Career Model, all civilians directly contributing to the curricular program are provided a letter that categorizes the terms of their appointment at USMA. Our records indicate you first started working at USMA as a civilian faculty member 6/1/2024. The nine categories below, which have been determined by your Department Head, apply to your current appointment.

1. Faculty Member: Yes
2. Funding Source: Appropriated USMA Funds.
3. Academic Promotion: Contingent on meeting all appropriate requirements in USMA Regulation 150-3, you are eligible to seek promotion to Associate Professor.
4. Academic Tenure Status: Tenure-Track (Term). Your required date to apply for academic promotion/tenure is: December, 2029. The conditions for reappointment during the tenure-seeking service period are described in USMA Regulation 150-2.
5. Primary Role: Regular Faculty: You are expected to contribute in the domains of Teaching, Scholarship, Service, Faculty Development, and Cadet Development.
6. Academic Rank: Assistant Professor
7. Employment Classification: USMA TDA Position. This position is required and authorized by the Headquarters, Department of the Army.
8. Sabbatical: Position not eligible during this term appointment.
9. Education Level: Doctoral/Terminal Degree: Educational Studies

If there is a change in any of the categories above, you will receive a new appointment letter. If you have questions or concerns about the categories of your appointment, please consult your Department Head. Furthermore, information on the categories of

MADN

SUBJECT: Terms of your appointment at USMA

your appointment can be found in USMA Regulation 150-2 or you may discuss them with the Assistant Dean for Civilian Faculty. USMA Regulation 150-2 can be found at the Dean's Policy and Regulation site.

Dr. John Smith  
Assistant Dean for Civilian Faculty  
Office of the Dean

## **Appendix D**

### **Sample Categorization Letter Wording**

1. Faculty Member:
  - a. No
  - b. Yes
2. Funding Source:
  - a. Appropriated USMA Funds
  - b. Reimbursable appropriated funds from another government agency
  - c. Gift funds from the USMA Association of Graduates (or another appropriate source if identifiable)
  - d. IPA: You are serving under an Intergovernmental Personnel Act agreement.
  - e. Volunteer (Gratuitous Service Agreement): You have entered into a voluntary work agreement with USMA.
  - f. Grant: Your position is funded through a grant.
  - g. External: Your funding source is an entity outside of USMA.
3. Academic Promotion:
  - a. You are not eligible for academic promotion
  - b. Contingent on meeting all appropriate requirements, you are eligible to seek academic promotion to the rank of (Indicate next eligible rank.) in the future.
4. Excepted Service Appointment and Academic Tenure Status:
  - a. Non-Tenure Track (Temporary): This appointment started approximately [indicate date] and will end on [indicate date].
  - b. Non-Tenure-Track (Term): At this time, there is no intent to renew your appointment. Unless you are notified otherwise by your Department Head, you should assume your appointment will expire on the not to exceed date shown on your SF50 in your electronic official personnel folder (EOPF).
  - c. Non-Tenure Track (Term): There is an opportunity for your continued employment on the USMA faculty in a series of term non-tenure track appointments, subject to job performance and the needs of the Academy. Except in a case of documented misconduct or poor performance, or a lapse in funding for your position, if your appointment will not be renewed, your Department Head will normally notify you in writing before the first class day of the last academic year of your current appointment. If this notice is given late or not given, you may request a two-semester extension to the Not to Exceed (NTE) date of your appointment. A request for extension that is received prior to the NTE date and within 30 calendar days of a late notice of non-reappointment will normally be granted. Denial

of a timely request for extension must be approved by the Dean (or Commandant). Your appointment will expire on the not to exceed date shown on your SF50 in your electronic official personnel folder (EOPF).

- d. Tenure-Track (Term). Your required date to apply for academic promotion/tenure is: [Indicate Date]. The conditions for reappointment during the tenure-seeking service period are described in USMA Regulation 150-2.
- e. Tenured (Permanent): Tenured civilian faculty members serve in permanent appointments.
- f. Not Applicable: Title 5 or temporary visiting professor position (non-Title 10/excepted service for teaching).

5. Primary Role:

- a. Regular Faculty: You are expected to contribute in the domains of Teaching, Scholarship, Service, Faculty Development, and Cadet Development.
- b. Teaching Faculty: You have an outsized Teaching requirement in support of curricular programs and may not have the opportunity to meet the requirements for academic promotion.
- c. Research Faculty: You have an outsized scholarship requirement in support of research or cadet capstones and may not have the opportunity to meet the requirements for academic promotion.
- d. Administrative Faculty: You have an outsize focus on administrative requirements and teach as duties permit. You may not have the opportunity to meet the requirements for academic promotion.
- e. Laboratory Faculty: You have an outsized scholarship requirement supporting laboratory functions and cadets' laboratory activities and may not have the opportunity to meet the requirements for academic promotion.
- f. Not Applicable

6. Academic Rank:

- a. None
- b. Lecturer
- c. Senior Lecturer
- d. Instructor
- e. Senior Instructor
- f. Assistant Professor
- g. Associate Professor
- h. Professor of Discipline
- i. Professor Emeritus/Emerita
- j. Instructor of Military Science
- k. Senior Instructor of Military Science

7. Employment Classification:

- a. USMA TDA Position. This position is required and authorized by the Headquarters, Department of the Army.
- b. Overhire. While this position is not required or authorized by the Headquarters, Department of the Army, the position is important to support mission requirements, augment shortages, or facilitate adjustments to changing requirements.
- c. Visiting Professor: you teach an agreed upon number of sections and advise Department and/or Academy leaders on best practices from your home institution.
- d. Endowed/Distinguished Chair: Your duties are determined by the terms of the endowment.
- e. Fellow. You will teach or research as stipulated by your fellowship requirements and funding source.
- f. Post Doc: You serve in a position designed to provide a developmental experience to recent recipients of terminal degrees.
- g. Part time Title 10: Part time faculty members hold temporary or term appointments. Faculty members hired in this role will teach the number of sections agreed upon at the time of employment.
- h. Reemployed Annuitant: Civilian faculty members who have retired from government service may be employed as a reemployed annuitant to support teaching, administration, or research requirements as determined at the time of employment.
- i. Inter-Governmental Personnel Act: Inter-Governmental faculty members are employees of other academic institutions (non-federal), state/local government and/or government sponsored laboratories.
- j. Contractor: You are employed by a company under contract to USMA.

8. Sabbatical:

- a. Position not eligible during this term appointment.
- b. Position is eligible subject to the requirements in USMA Regulation 150-5.

9. Education Level:

- a. Bachelor's Degree
- b. Master's Degree or equivalent (Indicate specific degree.)
- c. Doctoral/Terminal Degree (Indicate specific degree.)

## Appendix E

### Implementing Guidance for Title 10 Civilian Faculty Performance Awards



DEPARTMENT OF THE ARMY  
UNITED STATES MILITARY ACADEMY  
646 SWIFT ROAD  
WEST POINT, NY 10996

MACS

AUG 17 2022

MEMORANDUM FOR Directorate Supervisors

SUBJECT: Implementing Guidance for T10 Civilian Faculty Performance Awards

1. References:

- a. HQDA Letter 690-93-1. Dated 29 December 1993.
- b. USMA Regulation 150-2 The Civilian Faculty Career Model
- c. Army Regulation 672-20, Incentive Awards, 17 September 2020.

2. Purpose. This memorandum provides implementing guidance on issuing two types of performance awards for Title 10 (T10) civilian faculty: cash awards (CAs) and merit step increases (MSIs). CAs can be an On-The-Spot (OTS) award or a Special Act or Service Award (SASA) as described in Chapter 4 of reference c. An MSI is an accelerated step increase.

3. CAs and MSIs are tools to recognize outstanding faculty contributions, award extraordinary performance, and retain USMA's high performing civilian faculty. Funds to support these awards are limited, so each submission for consideration must demonstrate exceptional performance and a strong justification. In addition to providing evidence of remarkable performance, MSIs may only be awarded when the individual's pay profile also warrants an adjustment as determined by the annual pay review board that is chaired by the Vice Dean for Resources.

4. Award targets. Performance award targets will be calculated annually by G8 and will be subject to availability of funds. Funding for T10 CAs will be included in overall directorate performance award targets (T5 and T10) and further sub-divided by directorates to departments. Funding for T10 MSIs will be sent to and retained by the Vice Dean for Resources for distribution. Given funding constraints, a maximum of 10% of authorized appropriated funded T10s will be approved for an MSI each FY.

5. Nominations. All MSI nominations and CAs greater than \$2500 (i.e., 1 step in value) must be submitted to the Dean's HR Branch along with a 200 word or less justification

MACS

SUBJECT: Implementing Guidance for T10 Civilian Faculty Performance Awards

by 1 August each year. The Dean will form an external review panel, which will include representation from USCC, to consider all requests and approve all awards subject to funding. Department heads, center directors, Vice Deans, the Deputy Commandant, or the USMA Chief of Staff may nominate any T10 faculty member for an MSI.

6. Timing of Awards. Departments may submit CAs at any point once they have received their department targets. For approved MSI nominations, civilians can generally expect to receive their MSI in October. T10 faculty members may receive a performance award at the same time as their longevity step increase or between them.

7. As with longevity step increases, all CAs and MSIs must be paid from the source of funding which supported the employee's payroll costs for the period of performance. Organizations must be proactive in formulating a plan so that the proper reimbursable customer or gift account can be charged.

8. Point of Contact for this memorandum is Dr. Blair Niece, [blair.niece@westpoint.edu](mailto:blair.niece@westpoint.edu) or 845-938-6316.

A handwritten signature in blue ink, appearing to read 'B. Reed', is positioned above the printed name.

BRIAN J. REED  
COL, USA  
Chief of Staff